

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

DOCKET NO. 24-12

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

Served: August 16, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

SCHEDULING ORDER

On July 19, 2024, the parties filed a joint status report requesting entry of a scheduling order that exceeds the 150-day timeline provided for in 46 C.F.R. § 502.141(g). In support of their request for 11 months to complete discovery, the parties note that they have been discussing collection of electronically stored information, which they anticipate will exceed 10 terabytes of responsive documents. See Joint Status Report, pp. 2-3. They also anticipate up to twenty depositions per side. In light of the over \$80 million in reparations potentially at issue, the proposed discovery is not disproportionate to the needs of the case.

I will grant the parties the time they are seeking for discovery with the following instructions:

- If any intermediate discovery deadline (that is, any deadline before the close of discovery listed below) is not met, the parties must immediately file a joint status report explaining the cause of the delay and the steps being taken to get discovery back on schedule.
- The parties must cooperate to resolve discovery disputes promptly. If an unresolved discovery dispute is anticipated to have an impact on a discovery deadline, or if a party plans on filing a motion to compel, the parties must jointly email me at judges@fmc.gov, providing a brief description of the discovery dispute (less than 250 words). I will schedule a discovery conference and/or provide any supplemental instructions in the event a motion to compel is

necessary. 46 C.F.R. § 502.141(i)(1). This instruction is different from the instruction regarding motions to compel in the Initial Order.

- The schedule requires a joint status report on January 10, 2025. If the status on that date is anything other than on schedule, the parties must also email judges@fmc.gov with their availability for a status conference.
- Counsel must start blocking out time on their calendars and on their clients' calendars now – the windows for fact and expert depositions are short. Counsel should also ensure they provide me with witness subpoenas well in advance of deposition dates. Absent extraordinary circumstances, I will not extend the scheduling order due to unavailability of counsel or witnesses.

The parties are **ORDERED** to adhere to the following schedule:

Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	August 23, 2024
Parties to serve objections and initial responses to initial RFPs	September 27, 2024
Parties to serve objections and initial responses to initial interrogatories	September 27, 2024
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	October 25, 2024
Substantial completion of productions of documents and ESI in response to initial RFPs	December 13, 2024
Parties to File Joint Status Report	January 10, 2025
Complete depositions of fact witnesses	February 28, 2025
Last day to serve interrogatories, requests for admission, and RFPs	February 28, 2025
Disclosure of initial expert reports, if any	April 4, 2025
Disclosure of rebuttal expert reports, if any	May 9, 2025
Complete expert depositions	June 6, 2025
Close of discovery	June 6, 2025
Complainant’s initial brief, proposed findings of fact, and appendix	July 18, 2025
Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	August 29, 2025

SO ORDERED.

**Alex Michael
Chintella**

Digitally signed by
Alex Michael
Chintella
Date: 2024.08.16
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Alex M. Chintella
Administrative Law Judge